

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 19-014
Title 2, Chapter 7, Article A of the Chickasaw Nation Code
(Chickasaw Nation Ethics Commission)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, Elected officials of the Chickasaw Nation deem it necessary to establish an Ethics Commission as an administrative hearing panel, and

WHEREAS, the Ethics Commission will be responsible for hearing and issuing written opinions regarding violations of the Chickasaw Nation Ethics in Government Act of 2002 and other matters as authorized by law.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves the following language to be added to Title 2, Chapter 7 of the Chickasaw Nation Code as Article A:

**CHAPTER 7
ETHICS**

**ARTICLE A
CHICKASAW NATION ETHICS COMMISSION**

Section 2-701.1	Commission created.
Section 2-701.2	Appropriation, compensation, staff.
Section 2-701.3	Duties and responsibilities.
Section 2-701.4	General rules of procedure.
Section 2-701.5	Enforcement.
Section 2-701.6	Appeals.

SECTION 2-701.1 COMMISSION CREATED.

A. There is hereby created a Chickasaw Nation Ethics Commission ("Commission"). The Commission shall be comprised of three (3) members who shall elect a Chairperson from among their number at their first meeting in each calendar year. Members shall be Chickasaw Citizens in accordance with tribal membership provisions included in Article II, Section 1 of the Constitution.

Commissioners shall be nominated and confirmed in accordance with Title 2, Chapters 10 & 11, Article A of the Code of the Chickasaw Nation, and Article XI, Section 2 of the Constitution. The Commission shall be within the Judicial Department; however, the Commission shall make its decisions without input, advice or interference from any of the three departments of tribal government, any officer or employee thereof, or any other person not sitting on the Commission.

B. Commissioners shall serve for a term of three (3) years with an anniversary date of October 1. Commissioners shall be reappointed, or a replacement shall be appointed, at least sixty (60) days prior to the expiration of the term. Once the full Commission is seated, Commissioners shall draw lots to determine which of the members shall serve a one (1) year term, to be called Seat 1, two (2) year term, to be called Seat 2, or three (3) year term, to be called Seat 3. Thereafter, all members shall serve full three (3) year terms, with one (1) seat becoming vacant each subsequent year. No Commissioner shall serve more than six (6) consecutive years or two (2) terms plus any remaining term for which the Commissioner was appointed, which ever is longer.

C. Members of the Commission may resign at any time but may be removed only for cause. Vacancies occurring on the Commission shall be filled in the same manner as described and defined in Subsection A above. Vacancies shall be filled for the remainder of the respective term.

D. No current public official or employee of the Nation shall serve on the Commission. No Commissioner shall be eligible for elected office for one (1) years after completing his term.

SECTION 2-701.2

APPROPRIATION, COMPENSATION, STAFF.

A. The Commission shall receive an annual appropriation included in the annual tribal budget sufficient to enable it to perform its duties as set forth herein. Any funds appropriated to the Commission which remain unspent at the end of the fiscal year shall be returned to the General Fund.

B. The Commission shall present its proposed budget through the Judicial Department to the office of Governor of the Chickasaw Nation in accordance with established protocol.

C. Commissioners shall receive reimbursement for travel, lodging and meals while on official business as provided by Chickasaw Nation policy; otherwise, Commissioners shall not be compensated.

D. The Commission may employ an office manager and maintain an office in a location provided by the Judicial Department.

SECTION 2-701.3

DUTIES AND RESPONSIBILITIES.

In accordance with all powers and authority as provided in this Act and elsewhere in the Chickasaw Nation Code, the Commission shall have the specific duties, responsibilities and authority to:

1. Provide written advisory opinions, when required by law or deemed by the Commission to be necessary; to guide conduct and address specific questions when requested by public officials and employees of the Nation; and provide written decisions when hearing complaints, challenges or any other matter as provided by Chickasaw law.
2. Conduct administrative hearings to hear complaints and determine violations or noncompliance with the Chickasaw Nation Ethics in Government Act of 2002. All Commission hearings shall follow rules of procedure promulgated by the Commission with input and assistance from the Judicial, Legislative and Executive Departments and presented to the Legislature for their rejection, amendment, alteration and/or approval. A complainant shall present his complaint.
3. Dismiss any complaint which the Commission determines has insufficient facts to constitute a violation of, or is in noncompliance with, the Chickasaw Nation Ethics in Government Act of 2002 Act or other Chickasaw law; or provides insufficient evidence to support the allegations; or is otherwise outside the authority of the Commission.
4. Issue a written opinion or decision detailing the finding of facts and reasoning, or lack thereof, of any issue heard by the Commission to the complainant and other interested parties including the Governor and Legislature.

SECTION 2-701.4

GENERAL RULES OF PROCEDURE.

- A. Unless otherwise provided by Chickasaw law, no action shall be brought more than two (2) years after such cause of action has occurred or been discovered, whichever occurs later.
- B. The Commission may recommend any sanctions, civil damages, restitution, or other penalties as provided herein.
- C. Complainant(s) and person(s) who are the subject of ethics complaint(s) have the right to present evidence, to testify in their own behalf, question witnesses against them and call witnesses to testify in support of their respective causes.
- D. The burden of proof shall be on the complainant and decisions will be made according to preponderance of the evidence.
- E. Two (2) Commissioners shall constitute a quorum; decisions shall be made by majority vote. In the event only two Commissioners are present, decisions shall be made by unanimous vote.

March 15, 2002

SECTION 2-701.5

ENFORCEMENT.

All decisions issued by the Commission shall be enforced by the Executive Department.

SECTION 2-701.6

APPEALS.

A. The Court(s) of the Nation shall have jurisdiction to hear all appeals from decisions of the Commission involving public officials, candidates for public office and employees of the Nation.

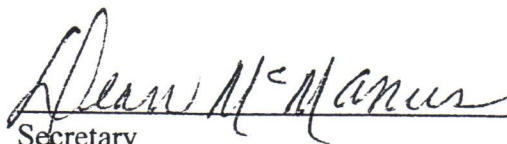
B. A notice of appeal or petition shall be filed with the Court(s) within thirty (30) days of the issuance of a decision of the Commission or such appeal will be barred.

C. All appeals to the Court shall be heard *de novo*.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on March 15, 2002, by a vote of 8 ayes, 5 nays, 0 abstentions.

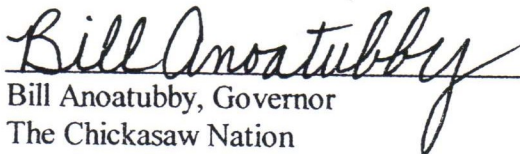


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:



Bill Anoatubby, Governor
The Chickasaw Nation

Date:

MAR 15 2002

CHICKASAW TRIBAL LEGISLATURE

**General Resolution Number 19-014
Title 2, Chapter 7, Article A of the Chickasaw Nation Code
(Chickasaw Nation Ethics Commission)**

Explanation: This resolution creates an Ethics Commission as an administrative hearing panel to issue opinions regarding violations of the Chickasaw Nation Ethics in Government Act of 2002 and other matters as authorized by law.

Requested By: Linda Briggs, Chairperson
Ethics Ad Hoc Committee

Presented By: Wanda Blackwood Scott, Chairman
Legislative Committee